



SECURITIES AND FUTURES COMMISSION 證券及期貨事務監察委員會

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香港中環干諾道中八號遮打大廈八樓

5 June 2007

Circular to Management Companies of SFC-authorised Real Estate Investment Trusts ("REITs")

Electronic Dissemination of Public Announcements of SFC-authorised REITs

1. The SFC notes that the Stock Exchange of Hong Kong ("SEHK") will abolish the Main Board requirement for paid announcements and launch the new regime for electronic dissemination of regulatory information (referred to collectively as the "Electronic Disclosure Project") with effect on 25 June 2007. The SFC hereby clarifies the implementation of the electronic dissemination regime among SFC-authorised REITs.

Background

2. SFC-authorised REITs are required to make timely disclosure of information to their unitholders by way of announcements. Note to Rule 10.2 of the Code on REITs provides guidance on the manner of publication of announcements.
3. In light of the market demand for more timely information disclosure, the SEHK has embarked on the Electronic Disclosure Project and amassed market support for its proposals. According to the SEHK, the Electronic Disclosure Project is to be implemented in phases, with a transitional period of six months commencing on 25 June 2007, during which time all Main Board issuers are required to publish notifications in the newspapers instead of the need to publish full announcements. One year after the commencement of the transitional period, all issuers shall have their own websites and publish their Listing Rules documents thereon for free access by investors.
4. Upon the implementation of the Electronic Disclosure Project, Main Board issuers are under a mandatory requirement to submit Listing Rules documents to the SEHK electronically through the SEHK's Electronic Submission System.

Dissemination of Public Announcements of SFC-authorised REITs

5. Since SFC-authorised REITs are listed on the SEHK, the SFC has adopted the policy of requiring SFC-authorised REITs to implement the same method of information dissemination that is practised among other Main Board issuers.



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6. Note to Rule 10.2 of the Code on REITs provides that “*electronic means of publication may also be considered by the Commission*”. In light of the new disclosure regime among other Main Board issuers, and the enhanced timeliness of information dissemination to be achieved as a result, the SFC now informs managers of SFC-authorised REITs that, beginning 25 June 2007, insofar as they adopt such disclosure dissemination practice as that set out in the revised Listing Rules in relation to the Electronic Disclosure Project, their electronic publication of announcements shall be regarded as being in compliance with the Code on REITs requirement in respect of the manner of publication.
7. In line with the SEHK proposal, all REITs managers are required to publish notifications in the newspapers during the transitional period. Further, the issuance of press announcements will be optional.
8. REIT managers should and are reminded to consider whether amendments to the trust deeds of the REITs are necessary before implementation of the new disclosure dissemination regime, and if so, make such amendments in accordance with the terms of the relevant trust deeds.
9. For the sake of clarity, REIT managers are reminded that, prior to submission to the Electronic Publication System, all announcements and notifications will remain to be subject to approval by the SFC, unless otherwise informed by it.

**Investment Products Department
Securities and Futures Commission**